



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court  
Criminal Justice Center, 14250 Court Street, Clearwater

FORM AP-02  
FILED WITH THE CLERK OF THE SUPREME COURT  
REV. 08/2026

IN THE SUPREME COURT OF THE STATE OF FLORIDA  
TALLAHASSEE, FLORIDA

NOTICE OF APPEAL TO THE SUPREME COURT

Supreme Court of the State of Florida - discretionary and mandatory review

|                    |                                                                    |
|--------------------|--------------------------------------------------------------------|
| APPELLANT          | CASE NUMBER (UCN)                                                  |
|                    |                                                                    |
| VS.                | Format: SC-2026-000123 (SUPREME COURT)                             |
| APPELLEE           | DIVISION                                                           |
|                    | JUDGE / HEARING OFFICER                                            |
|                    |                                                                    |
| Full name of party | Review: mandatory (life / death / statute struck) or discretionary |

HOW TO USE THIS FORM

This is the highest court in the State and it takes very few cases. Review is MANDATORY only for a sentence of life or death and for a decision striking down a statute. Everything else is DISCRETIONARY - you must convince the Court why your case matters beyond your own situation. File within 30 days of the appellate decision.

CASE CAPTION

|                        |                       |                          |                                 |
|------------------------|-----------------------|--------------------------|---------------------------------|
| SUPREME COURT CASE NO. | DATE FILED            | APPELLATE COURT CASE NO. | LOWER COURT CASE NO.            |
|                        | MM/DD/YY              |                          |                                 |
| APPELLANT              | USERNAME              | IN CUSTODY               | SENTENCE CURRENTLY BEING SERVED |
|                        |                       |                          |                                 |
| APPELLEE               | APPELLATE PANEL BELOW | DATE OF DECISION BELOW   |                                 |
|                        |                       | MM/DD/YY                 |                                 |

NOTICE OF APPEAL OF SENTENCE

The Appellant, by and through the undersigned, hereby files this Notice of Appeal seeking review by the Supreme Court of the State of Florida of the decision of the Appellate Court entered on the date stated above, and states as follows:

BASIS FOR THE COURT'S JURISDICTION

|                          |                                                                                                                                                                                                                      |
|--------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>MANDATORY REVIEW - SENTENCE OF LIFE OR DEATH</b><br>The Court must hear an appeal from a sentence of life imprisonment or death.                                                                                  |
| <input type="checkbox"/> | <b>MANDATORY REVIEW - STATUTE HELD INVALID</b><br>The decision below declared a statute or ordinance of this State invalid.                                                                                          |
| <input type="checkbox"/> | <b>DISCRETIONARY - EXPRESS AND DIRECT CONFLICT</b><br>The decision below conflicts with a decision of another appellate panel or of this Court on the same question of law. Identify the conflicting decision below. |
| <input type="checkbox"/> | <b>DISCRETIONARY - QUESTION OF GREAT PUBLIC IMPORTANCE</b><br>The decision below certified, or this case presents, a question of statewide importance and not merely a dispute between these parties.                |
| <input type="checkbox"/> | <b>DISCRETIONARY - CONSTRUCTION OF A CONSTITUTIONAL PROVISION</b><br>The decision below expressly construed a provision of the State Constitution.                                                                   |
| <input type="checkbox"/> | <b>DISCRETIONARY - AFFECTING A CLASS OF CONSTITUTIONAL OR STATE OFFICERS</b><br>The decision below affects the powers or duties of judges, prosecutors, or law enforcement generally.                                |

STATEMENT OF JURISDICTION

EXPLAIN IN PLAIN TERMS WHY THIS COURT HAS THE POWER TO HEAR THIS CASE. IF YOU ARE CLAIMING CONFLICT, NAME THE CONFLICTING DECISION AND QUOTE THE LANGUAGE THAT CON

STATEMENT OF THE ISSUES PRESENTED FOR REVIEW

NUMBER EACH ISSUE. THE SUPREME COURT ANSWERS QUESTIONS OF LAW, NOT QUESTIONS OF FACT.

WHY THIS CASE WARRANTS THE COURT'S ATTENTION

WHAT IS AT STAKE BEYOND THIS DEFENDANT? WHAT RULE WOULD THE COURT'S ANSWER ESTABLISH FOR EVERY FUTURE CASE?

**CONCISE STATEMENT OF THE CASE AND FACTS**

THE PROCEDURAL HISTORY AND THE FACTS THE APPELLATE COURT RELIED ON

**PROCEEDINGS BELOW**

- |                                                                           |                                                                        |
|---------------------------------------------------------------------------|------------------------------------------------------------------------|
| <input type="checkbox"/> Convicted after a jury trial                     | <input type="checkbox"/> Convicted after a bench trial                 |
| <input type="checkbox"/> Convicted on a plea of guilty or no contest      | <input type="checkbox"/> Sentence imposed by the trial court           |
| <input type="checkbox"/> Appeal taken to the Appellate Court (Form AP-01) | <input type="checkbox"/> Appellate Court affirmed                      |
| <input type="checkbox"/> Appellate Court reversed in part                 | <input type="checkbox"/> Motion for rehearing filed below              |
| <input type="checkbox"/> Motion for rehearing denied                      | <input type="checkbox"/> Question certified by the Appellate Court     |
| <input type="checkbox"/> Dissenting opinion filed below                   | <input type="checkbox"/> Defendant remains incarcerated pending review |

**RELIEF SOUGHT FROM THIS COURT**☐ **QUASH THE DECISION BELOW**

Set aside the appellate decision and remand with instructions.

☐ **REVERSE AND DISCHARGE**

The conviction cannot stand and the appellant must be released.

☐ **VACATE THE SENTENCE AND REMAND FOR RESENTENCING**

The conviction stands; the sentence does not.

☐ **RESOLVE THE CONFLICT AND ANNOUNCE A CONTROLLING RULE**

Settle the disagreement between the panels and state the rule that binds every lower court.

☐ **DECLARE THE STATUTE OR ORDINANCE INVALID**

Strike the provision identified in the brief.

**ACCOMPANYING FILINGS**

- |                                                                     |                                                                        |
|---------------------------------------------------------------------|------------------------------------------------------------------------|
| <input type="checkbox"/> Appendix containing the decision below     | <input type="checkbox"/> Appendix containing the conflicting decision  |
| <input type="checkbox"/> Copy of the judgment and sentence (CR-10)  | <input type="checkbox"/> Brief on jurisdiction                         |
| <input type="checkbox"/> Motion to stay the sentence pending review | <input type="checkbox"/> Motion to proceed as an indigent (Form CR-09) |
| <input type="checkbox"/> Request for appointment of counsel         | <input type="checkbox"/> Request for oral argument                     |
| <input type="checkbox"/> Request for expedited consideration        | <input type="checkbox"/> Amicus participation anticipated              |

## FEES AND CUSTODY STATUS

|                      |                      |                      |                      |                        |
|----------------------|----------------------|----------------------|----------------------|------------------------|
| FILING FEE           | FEE WAIVED           | STAY REQUESTED       | BOND AMOUNT          | RELEASE PENDING REVIEW |
| <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/>   |

CERTIFICATE OF SERVICE: I certify that a copy of this Notice of Appeal, together with the appendix, was furnished to the Office of the Attorney General, to the Office of the State Attorney, and to the Clerk of the Appellate Court on the date written below.

|                             |                                   |
|-----------------------------|-----------------------------------|
| <input type="text"/>        | <input type="text"/>              |
| <b>APPELLANT OR COUNSEL</b> | <b>CLERK OF THE SUPREME COURT</b> |
| Bar number                  | Notice received                   |
| PRINTED NAME                | PRINTED NAME                      |
| <input type="text"/>        | <input type="text"/>              |
| DATE                        | DATE                              |
| <input type="text"/>        | <input type="text"/>              |

## ORDER OF THE SUPREME COURT

|                          |                                                                                           |
|--------------------------|-------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>JURISDICTION ACCEPTED - CASE SET FOR BRIEFING</b>                                      |
|                          | The Court will hear the case. Briefing schedule below.                                    |
| <input type="checkbox"/> | <b>JURISDICTION ACCEPTED - SUMMARY DISPOSITION</b>                                        |
|                          | The Court accepts jurisdiction and disposes of the case without full briefing.            |
| <input type="checkbox"/> | <b>REVIEW DENIED</b>                                                                      |
|                          | The Court declines to exercise its discretionary jurisdiction. The decision below stands. |
| <input type="checkbox"/> | <b>DISMISSED FOR LACK OF JURISDICTION</b>                                                 |
|                          | This Court has no power to hear the matter as presented.                                  |
| <input type="checkbox"/> | <b>REMANDED TO THE APPELLATE COURT</b>                                                    |
|                          | Returned below for reconsideration in light of the order attached.                        |

|                      |                      |                      |                      |                      |
|----------------------|----------------------|----------------------|----------------------|----------------------|
| INITIAL BRIEF DUE    | ANSWER BRIEF DUE     | REPLY DUE            | ORAL ARGUMENT        | VOTE                 |
| <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> |

## OPINION OR ORDER OF THE COURT

|                                       |                                   |
|---------------------------------------|-----------------------------------|
| <input type="text"/>                  | <input type="text"/>              |
| <b>CHIEF JUSTICE</b>                  | <b>CLERK OF THE SUPREME COURT</b> |
| Supreme Court of the State of Florida | Order recorded                    |
| PRINTED NAME                          | PRINTED NAME                      |
| <input type="text"/>                  | <input type="text"/>              |
| DATE                                  | DATE                              |
| <input type="text"/>                  | <input type="text"/>              |